

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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JEFFREY LLOYD, JA-NAY LATIFAH GRAHAM,
LAWRENCE LEE, JUSTIN GOODE and A.T., an infant
under the age of 16 by his Mother and Natural Guardian,
COTONDRA DAVIS and COTONDRA DAVIS,
individually,

Plaintiff designates Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

Plaintiffs,

SUMMONS

-against-

Plaintiff, JUSTIN GOODE,
resides at
760 Park Avenue, Apt. 13L
Brooklyn, New York 11206

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER FRANCIS-Shield # 10068, POLICE
OFFICER JOHN BRENNAN-Shield # 24668, POLICE
OFFICER PAUL LOUIS-Shield # 17219 and JOHN
DOES-Police Officers as yet unidentified,

County of Kings

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER CHRISTOPHER
FRANCIS-Shield # 10068
c/o New York City Police Department- Police
Service Area 3 (PSA 3)
New York City Housing Authority Police
Department
25 Central Avenue
Brooklyn, New York 11206

Defendant's address:

POLICE OFFICER JOHN BRENNAN-Shield #
24668
Tax ID#
c/o New York City Police Department- 17th
Precinct
167 East 51st Street
New York, New York 10022

POLICE OFFICER PAUL LOUIS-Shield #
17219
Tax ID# 958840
c/o New York City Police Department- Police
Service Area 3 (PSA 3)
New York City Housing Authority Police
Department
25 Central Avenue
Brooklyn, New York 11206

Dated: Brooklyn, New York
July 16, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JEFFREY LLOYD, JA-NAY LATIFAH GRAHAM,
LAWRENCE LEE, JUSTIN GOODE and A.T., an infant
under the age of 16 by his Mother and Natural Guardian,
COTONDRA DAVIS and COTONDRA DAVIS,
individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER FRANCIS-Shield # 10068, POLICE
OFFICER JOHN BRENNAN-Shield # 24668, POLICE
OFFICER PAUL LOUIS-Shield # 17219 and JOHN
DOES-Police Officers as yet unidentified,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JEFFREY LLOYD**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the
County, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 21, 2019, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof
was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30)

days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff JEFFREY LLOYD, was held on December 18, 2019.

6. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JEFFREY LLOYD, was lawfully present at or about the intersection of Marcy Avenue and Martin Luther King Place, in the County of Kings, City and State of New York.

8. While at the aforementioned location, the plaintiff, JEFFREY LLOYD, was approached and was assaulted and battered by the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, kicked and punched. While being assaulted, plaintiff's hand were raised in the air and was grabbed and thrown into a fence and was held against the fence with physical force and being forcefully handcuffed. The plaintiff was taken under police custody and refused provide medical treatment for injuries sustained and was kicked violently thrown and slammed into a marked police vehicle. While in the vehicle, the defendants continued to assault and batter the plaintiff, such as punching and kicking. Thereafter, the plaintiff was then transported to the Police Precinct where he was placed in a holding cell. He was then taken to the 79th Precinct at approximately 11:45 pm and remained until released at approximately 4:00 am on August 18, 2019.

9. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JEFFREY LLOYD, was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JEFFREY LLOYD, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JEFFREY LLOYD**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JEFFREY LLOYD.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF JEFFREY LLOYD**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield #

10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, JEFFREY LLOYD.

21. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, plaintiff, JEFFREY LLOYD, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF JEFFREY LLOYD**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

26. That the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER BRENNAN-Shield # 24668, POLICE OFFICER LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of

their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF JEFFREY LLOYD**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JEFFREY LLOYD.

31. That as a result of said intentional and negligent acts, the plaintiff, JEFFREY LLOYD, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF JEFFREY LLOYD**

33. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER BRENNAN-Shield # 24668, POLICE OFFICER LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, JEFFREY LLOYD.

36. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JEFFREY LLOYD**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, JEFFREY LLOYD.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, JEFFREY LLOYD, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JEFFREY LLOYD**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, JEFFREY LLOYD, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JA-NAY LATIFAH GRAHAM**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.

51. That prior hereto on August 21, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30)

days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

52. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff JA-NAY LATIFAH GRAHAM, was held on December 18, 2019.

53. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

54. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JA-NAY LATIFAH GRAHAM, was lawfully present at or about the intersection of Marcy Avenue and Martin Luther King Place, in the County of Kings, City and State of New York.

55. While at the aforementioned location, the plaintiff, JA-NAY LATIFAH GRAHAM, was approached and was assaulted and battered by the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER BRENNAN-Shield # 24668, POLICE OFFICER LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, shoved, pushed and struck in the head by a baton asp and/or weapon. The plaintiff was not arrested and was not charged with a crime.

56. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JA-NAY LATIFAH GRAHAM, was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

57. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

58. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JA-NAY LATIFAH GRAHAM, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

59. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

60. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

61. By the reason of the foregoing, the plaintiff, JA-NAY LATIFAH GRAHAM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JA-NAY LATIFAH GRAHAM**

62. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "61" inclusive with the same force and effect as if more fully set forth at length herein.

63. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER

JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JA-NAY LATIFAH GRAHAM.

64. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

65. By the reason of the foregoing, the plaintiff, JA-NAY LATIFAH GRAHAM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF JA-NAY LATIFAH GRAHAM**

66. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "65" inclusive with the same force and effect as if more fully set forth at length herein.

67. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

68. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JA-NAY LATIFAH GRAHAM.

69. That as a result of said intentional and negligent acts, the plaintiff, JA-NAY LATIFAH GRAHAM, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

70. By reason of the foregoing, the plaintiff, JA-NAY LATIFAH GRAHAM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JA-NAY LATIFAH GRAHAM**

71. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "70" inclusive with the same force and effect as if more fully set forth at length herein.

72. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, JA-NAY LATIFAH GRAHAM.

73. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

74. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

75. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to

POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER BRENNAN-Shield # 24668, POLICE OFFICER LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

76. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

77. As a direct and proximate result of this unlawful conduct, the plaintiff, JA-NAY LATIFAH GRAHAM, sustained the damages hereinbefore alleged.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JA-NAY LATIFAH GRAHAM**

78. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "77" inclusive with the same force and effect as if more fully set forth at length herein.

79. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

80. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

81. By the reason of the foregoing, the plaintiff, JA-NAY LATIFAH GRAHAM, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF LAWRENCE LEE**

82. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "81" inclusive with the same force and effect as if more fully set forth at length herein.

83. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Queens, City and State of New York.

84. That prior hereto on August 21, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

85. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff LAWRENCE LEE, was held on December 18, 2019.

86. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

87. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LAWRENCE LEE, was lawfully present at or about the intersection of Marcy Avenue and Martin Luther King Place, in the County of Kings, City and State of New York.

88. While at the aforementioned location, the plaintiff, LAWRENCE LEE, was approached and was assaulted and battered by the defendants, POLICE OFFICER

CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, kicked and punched. While being assaulted, plaintiff's hand were held behind his back and was grabbed and thrown into the roadway and was held against the roadway with physical force and being forcefully handcuffed. The plaintiff was taken under police custody and was refused medical treatment for injuries sustained and was violently pushed and shoved and thereafter was punched and kicked while being held down on the roadway. The plaintiff was then transported to the Police Precinct and then to Woodhull Medical Center where he was admitted and treated for medical treatment while being handcuffed to the bed under police escort until Tuesday, August 20, 2019 and remained until released at approximately 11:00 am on August 20, 2019.

89. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LAWRENCE LEE, was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

90. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

91. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, LAWRENCE LEE, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

92. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

93. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

94. By the reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF LAWRENCE LEE**

95. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "94" inclusive with the same force and effect as if more fully set forth at length herein.

96. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, LAWRENCE LEE.

97. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

98. By the reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF LAWRENCE LEE**

99. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "98" inclusive with the same force and effect as if more fully set forth at length herein.

100. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, LAWRENCE LEE.

101. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

102. That as a result of the aforesaid false arrest and confinement, plaintiff, LAWRENCE LEE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

103. By the reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF LAWRENCE LEE**

104. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "103" inclusive with the same force and effect as if more fully set forth at

length herein.

105. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

106. That the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

107. By the reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF LAWRENCE LEE**

108. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "107" inclusive with the same force and effect as if more fully set forth at length herein.

109. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

110. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, LAWRENCE LEE.

111. That as a result of said intentional and negligent acts, the plaintiff, LAWRENCE LEE, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

112. By reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF LAWRENCE LEE**

113. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through 112" inclusive with the same force and effect as if more fully set forth at length herein.

114. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

115. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, LAWRENCE LEE.

116. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained

serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

117. By reason of the foregoing, plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTIETH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF LAWRENCE LEE**

118. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "117" inclusive with the same force and effect as if more fully set forth at length herein.

119. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, LAWRENCE LEE.

120. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

121. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

122. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN

DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

123. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

124. As a direct and proximate result of this unlawful conduct, the plaintiff, LAWRENCE LEE, sustained the damages hereinbefore alleged.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF LAWRENCE LEE**

125. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "124" inclusive with the same force and effect as if more fully set forth at length herein.

126. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

127. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

128. By the reason of the foregoing, the plaintiff, LAWRENCE LEE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JUSTIN GOODE**

129. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "128" inclusive with the same force and effect as if more fully set forth at length herein.

130. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.

131. That prior hereto on October 11, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

132. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff JUSTIN GOODE, was held on June 22, 2020.

133. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER BRENNAN-Shield # 24668, POLICE OFFICER LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

134. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JUSTIN GOODE, was lawfully present at or about the intersection of Marcy Avenue and Martin Luther King Place, in the County of Kings, City and State of New York.

135. While at the aforementioned location, the plaintiff, JUSTIN GOODE, was approached and was assaulted and battered by the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield #

24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, kicked, tackled, kneed and punched. The defendants continued to assault the plaintiff by slamming his face, head, left shoulder, back, among other parts of his body repeatedly and was forcibly held by his head and neck and then slammed into the ground and then continued to punch and kick the plaintiff in the face, ribs and back and once again was grabbed, punched, kicked, tackled and thrown to the ground and was forcefully handcuffed. The plaintiff was taken under police custody and sent to an unknown police precinct where he was placed in a holding cell. Thereafter, the plaintiff was transferred to the 79th Precinct and remained until released at approximately 6:00 am on August 18, 2019.

136. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JUSTIN GOODE, was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

137. That on August 17, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

138. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JUSTIN GOODE, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

139. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

140. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

141. By the reason of the foregoing, the plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JUSTIN GOODE**

142. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "141" inclusive with the same force and effect as if more fully set forth at length herein.

143. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JUSTIN GOODE.

144. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

145. By the reason of the foregoing, the plaintiff, JUSTIN GOODE , sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF JUSTIN GOODE**

146. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "145" inclusive with the same force and effect as if more fully set forth at length herein.

147. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, JUSTIN GOODE .

148. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

149. That as a result of the aforesaid false arrest and confinement, plaintiff, JUSTIN GOODE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

150. By the reason of the foregoing, the plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF JUSTIN GOODE**

151. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "150" inclusive with the same force and effect as if more fully set forth at

length herein.

152. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

153. That the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

154. By the reason of the foregoing, the plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF JUSTIN GOODE**

155. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "154" inclusive with the same force and effect as if more fully set forth at length herein.

156. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

157. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JUSTIN GOODE.

158. That as a result of said intentional and negligent acts, the plaintiff, JUSTIN GOODE, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

159. By reason of the foregoing, the plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF JUSTIN GOODE

160. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "159" inclusive with the same force and effect as if more fully set forth at length herein.

161. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

162. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, JUSTIN GOODE.

163. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

164. By reason of the foregoing, plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN TWENTY-EIGHTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JUSTIN GOODE**

165. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "164" inclusive with the same force and effect as if more fully set forth at length herein.

166. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, JUSTIN GOODE.

167. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

168. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

169. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to

POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

170. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

171. As a direct and proximate result of this unlawful conduct, the plaintiff, JUSTIN GOODE, sustained the damages hereinbefore alleged.

**AS AND FOR A TWENTY-NINTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JUSTIN GOODE**

172. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "171" inclusive with the same force and effect as if more fully set forth at length herein.

173. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

174. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

175. By the reason of the foregoing, the plaintiff, JUSTIN GOODE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTIETH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

176. The plaintiffs repeat and reallege each and every allegation set forth above numbered "1" through "175" inclusive with the same force and effect as if more fully set forth at length herein.

177. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Kings, City and State of New York.

178. That prior hereto on September 18, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

179. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the plaintiffs, A.T. and COTONDRA DAVIS, were held on February 18, 2020.

180. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

181. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, A.T., was lawfully present at or

about the area in front of and adjacent to 582 Park Avenue, in the County of Kings, City and State of New York.

182. While at the aforementioned location, infant plaintiff, A.T., was approached and was assaulted and battered by the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being beaten, kicked, tackled, kneed and punched and then slammed his face, head, left shoulder and back, among other parts of the body repeatedly. The defendants continued to assault and batter by beating the infant plaintiff and forcibly holding his head and neck and slamming him on the ground. They continued to punch and kick the to infant plaintiff's face, head, ribs, neck and back, ignoring plaintiff's plea as he was cooperating. The infant plaintiff was then tripped and thrown to the ground once again and was forcefully handcuffed. While in handcuffs, the infant plaintiff was dragged by his hair and was kicked and punched again and pushed to the ground and was told to "**kiss the ground**" while being kneed and slammed by his neck, back and head repeatedly to the ground. The infant plaintiff was taken under police custody and was refused medical treatment for injuries sustained and was sent to an unknown police precinct where he was placed in a holding cell. Thereafter, the infant plaintiff was transferred to the 79th Precinct and remained until released at approximately 5:00 am on August 18, 2019.

183. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, A.T., was assaulted and battered by defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

184. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was

performed knowingly, intentionally and willfully.

185. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon infant plaintiff, A.T., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

186. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

187. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

188. By the reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-FIRST CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF A.T., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, COTONDRA DAVIS**

189. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "188" inclusive with the same force and effect as if more fully set forth at length herein.

190. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and

JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of infant plaintiff, A.T.

191. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

192. By the reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-SECOND CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

193. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "192" inclusive with the same force and effect as if more fully set forth at length herein.

194. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined infant plaintiff, A.T.,

195. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

196. That as a result of the aforesaid false arrest and confinement, infant plaintiff, A.T., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage

to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

197. By the reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

198. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "197" inclusive with the same force and effect as if more fully set forth at length herein.

199. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

200. That the defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

201. By the reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

202. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "201" inclusive with the same force and effect as if more fully set forth at length herein.

203. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

204. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to infant plaintiff, A.T..

205. That as a result of said intentional and negligent acts, infant plaintiff, A.T., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

206. By reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

207. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "206" inclusive with the same force and effect as if more fully set forth at length herein.

208. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a

prosecution in bad faith.

209. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted infant plaintiff, A.T.

210. That on August 17, 2019 through August 18, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

211. By reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTY-SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

212. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through 211" inclusive with the same force and effect as if more fully set forth at length herein.

213. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the infant plaintiff, A.T.

214. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual

capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

215. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

216. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

217. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

218. As a direct and proximate result of this unlawful conduct, infant plaintiff, A.T., sustained the damages hereinbefore alleged.

**AS AND FOR AN THIRTY-SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF A.T., AN INFANT BY HIS MOTHER
AND NATURAL GUARDIAN, COTONDRA DAVIS**

219. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "218" inclusive with the same force and effect as if more fully set forth at length herein.

220. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

221. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER CHRISTOPHER FRANCIS-Shield # 10068, POLICE OFFICER JOHN BRENNAN-Shield # 24668, POLICE OFFICER PAUL LOUIS-Shield # 17219 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

222. By the reason of the foregoing, infant plaintiff, A.T., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN THIRTY-EIGHTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF COTONDRA DAVIS ,
AS MOTHER AND NATURAL GUARDIAN OF INFANT, A.T.**

223. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "222" herein, as though more fully set forth herein at length.

224. That at all times hereinafter mentioned, plaintiff, COTONDRA DAVIS , was the Mother and Natural Guardian of the infant plaintiff, A.T., and as such said plaintiff, COTONDRA DAVIS , was entitled to the society and services of said infant plaintiff, A.T.

225. By reason of the defendants' aforementioned negligence, the plaintiff, COTONDRA DAVIS, was deprived of the society and services of the infant plaintiff, A.T., and shall forever be deprived of said society and services.

226. As a result of herein above, plaintiff, COTONDRA DAVIS , has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, A.T.

227. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, COTONDRA DAVIS, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, JEFFREY LLOYD, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, JA-NAY LATIFAH GRAHAM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, JA-NAY LATIFAH GRAHAM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, JA-NAY LATIFAH GRAHAM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, JA-NAY LATIFAH GRAHAM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, JA-NAY LATIFAH GRAHAM, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment

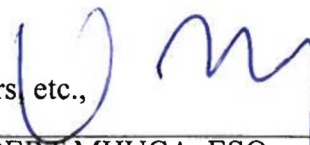
both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Nineteenth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twentieth** Cause of Action; plaintiff, LAWRENCE LEE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-First** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Second** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Third** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Forth** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fifth** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Sixth** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts

on the **Twenty-Seventh** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Eighth** Cause of Action; plaintiff, JUSTIN GOODE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Ninth** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirtieth** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-First** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Second** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Third** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Fourth** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Fifth** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Sixth** Cause of Action; infant plaintiff, A.T., by his Mother and Natural Guardian, COTONDRA DAVIS, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirty-Seventh** Cause of Action; plaintiff, COTONDRA DAVIS, Mother and Natural Guardian of infant plaintiff, A.T., demands judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Thirty-Eighth** Cause of Action;
together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
July 16, 2020

Yours etc.,

A handwritten signature in blue ink, appearing to be 'R Mijuca', written over a horizontal line.

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 19JL08-17

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

JEFFREY LLOYD, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


JEFFREY LLOYD

Sworn to before me this 23rd
of July, 2020


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2023

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

JA-NAY LATIFAH GRAHAM, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


JA-NAY LATIFAH GRAHAM

Sworn to before me this 20
of July, 2020


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

LAWRENCE LEE, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


LAWRENCE LEE

Sworn to before me this 20th
of July, 2020


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

JUSTIN GOODE, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Justin Goode
JUSTIN GOODE

Sworn to before me this 23rd
of July, 2020

Magda Marin-Colon
NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23

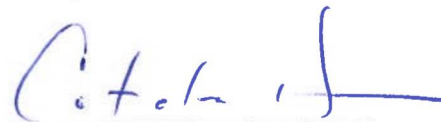
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

COTONDRA DAVIS, Mother and Natural Guardian of infant plaintiff, A.T.,
being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that
deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same
is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon
information and belief, and that as to those matters deponent believes them to be true.

COTONDRA DAVIS

Sworn to before me this 20th
of July, 2020


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2023